

Pachani Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 January 2017 · Writ-C No. 2425 of 2017 · Writ-C No. 2425 of 2017 · **Writ not pressed; liberty to CGRF under cl. 7.1; two-week decision**

HEADNOTE

After the licensee pointed to the alternative remedy before the Consumer Grievance Redressal Forum under Clause 7.1 of the Electricity Supply Code, 2005, the writ was disposed of as not pressed with liberty to approach the Forum, which was directed to consider and decide any such application within two weeks of presentation.

FACTUAL SUMMARY

Smt. Pachani Devi filed Writ-C No. 2425 of 2017 against the State of Uttar Pradesh and four others. On 18 January 2017 a Division Bench recorded that the petition did not relate to recovery of any amount and directed that it be listed as a fresh matter before the appropriate Court. On 24 January 2017, before the Chief Justice's Court, counsel for the licensee respondents submitted that she had an alternative remedy before the Consumer Grievance Redressal Forum under Clause 7.1 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.1

CGRF alternative remedy; writ withdrawn as not pressed

HOLDING

Where the licensee objects that the consumer has an alternative remedy before the Consumer Grievance Redressal Forum under Clause 7.1 of the Electricity Supply Code, 2005, and the writ petitioner withdraws with liberty to approach the Forum, the writ is disposed of as not pressed with that liberty, and the Forum shall consider and decide an application under Clause 7.1 within two weeks of presentation. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The writ was withdrawn as not pressed after the Clause 7.1 objection; the Court did not examine the underlying supply or billing dispute. ¶ 2